

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 2693 OF 2014

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure, 1908.

AND

In the matter of:

Broj Lal Pal, son of late Ombika Charan Pal of Village-
Pashim Fotehpur, Police Station- Sadar, District-
Noakhali.

.... Petitioner

-Versus-

Uttam kumar Pal, son of late Har Lal Pal of Village-
Master Para, Police Station- Sadar, District- Noakhali
and others.

....Opposite-parties

Mr. Montu Lal Das, Advocate

... For the petitioner

None appears

....For the opposite-parties

Heard and Judgment on 31.10.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J:

At the instance of the plaintiff in Title Suit No. 44 of 2011, this rule was issued calling upon the opposite-parties to show cause as to why the order no. 32 dated 24.03.2014 passed by the learned Joint District Judge, 1st Court, Noakhali in the said suit rejecting an application under section 151 of the Code of Civil Procedure for reconsideration of prayer dated 09.03.2014 to accept court fees of taka 600/- as per section 17(1) of the Court Fees Act should not be set aside and/or such other or further order or orders be passed as to this court may seem fit and proper.

At the time of issuance of the rule, all further proceeding of the said Title Suit No. 44 of 2011 was stayed for a period of 4(four) months which was lastly extended on 24.11.2015 till disposal of the rule.

The precise facts so figured in the instant revisional application are:

The present petitioner as plaintiff initially filed the aforesaid suit for declaring that, the deed of *heba* bearing nos. 2745 and 2746 given by the executants, the defendant nos. 2-3 in favour of the defendant no. 1 is illegal, inoperative, collusive and not binding upon the said plaintiff. When the suit was at the stage of argument hearing, the defendant no. 1 disclosed that, he by way of another deed of *heba* bearing no. 2450 dated 19.02.2012 transferred some portion of the land in favour of the defendant nos. 2 and 3. Having learned about the said transfer of the suit property, the plaintiff then on 09.03.2014 filed an application under order VI, rule 17 read with section 151 of the Code of Civil Procedure for adding a prayer by declaring that very deed dated 29.02.2012 is inoperative and also not binding upon the plaintiff. The said application was taken up for hearing by the learned Joint District Judge, 1st court, Noakhali and vide

order dated 09.03.2014 allowed the same with a cost of taka 500/- and asked the *Sherestadar* to give report with regard to depositing court fee. On that date, the plaintiff's witness no. 1 (P.W-1) was also recalled and took deposition of the said P.W-1 that is, plaintiff, Broj Lal Pal. However, on that date, the *Sherestadar* gave report to the effect that, the plaintiff has to pay advolarum court fee amounting to taka 45,100/- and then the court directed the plaintiff to pay the said amount on 24.03.2014. On the subsequent date that is, on 24.03.2014 which was earlier fixed for depositing advolarum court fee on the back of allowing the application for amendment as well as the suit was also set for argument hearing and to file additional written statement by the defendant nos. 1-3. However, the plaintiff filed an application under section 151 of the Code of Civil Procedure for reconsidering the order passed by the learned Judge of the trial court dated 09.03.2014 for depositing advolarum court fee and prayed for allowing the plaintiff to deposit court fee at taka 600/-. But the learned Judge of the trial court rejected the said application fixing on 30.03.2014 for depositing taka 45,100/- though he admitted the additional written statement so filed by the defendant nos. 1-3.

It is at that stage, the plaintiff came before this court and obtained the instant rule and order of stay.

Mr. Montu Lal Das, the learned counsel appearing for the petitioner upon taking us to the impugned order and all the documents appended therewith at the very outset submits that, the learned Judge of the trial court failed to comprehend that, the amendment was sought to be inserted in the prayer for declaration on the back of disclosing the fact that the

defendant no. 1 transferred 6 decimals of land to defendant nos. 2 and 3 by *heba* deed bearing no. 2450 dated 19.02.2012 and therefore, there has been no reason to assume that the plaintiff prayed for cancellation of the said deed within the meaning of section 39 of the Specific Relief Act rather that very prayer was made in declaratory form that comes under section 42 of the Specific Relief Act and therefore, the plaintiff has rightly paid an amount of taka 300/- for one declaration and taka 300/- on account of recovery of khas possession for 6 decimals of land fixing its value at taka 5,000/- but the learned Judge has committed an error of law by appreciating the report so placed by the *Sherestadar*.

When we pose a question to the learned counsel for the petitioner why that very highest amount of court fees at taka 45,100/- has been fixed, the learned counsel then takes us to the application for amendment where at the fag-end, the petitioner stated that the subsequent deed dated 19.02.2012 was required to be cancelled (উক্ত দলিল বাতিল ঘোষণা হওয়া আবশ্যিক) and assuming the said statement to be for cancellation of deed, the *Sherestadar* wrongly gave a report for depositing advolarum court fee however after allowing the application for amendment, the plaint was made afresh where in paragraph 9ka, it has clearly been prayed that, “নালিশী দলিলত্রয় বাদীর বিরুদ্ধে বাধ্যকর নয় মর্মে তফসিল ভূমিতে বাদীর স্বত্ব (সং আং ৩১, তাং- ৯/৩/১৪ইং) ঘোষণার ডিক্রী প্রদান করা”. So it turns out that, after allowing the amendment dated 09.03.2014, three deeds were called in question in the form of declaration claiming those to be not binding upon the plaintiff having no scope to pay advolarum court fee basing on the subsequent *heba* deed.

None represented the opposite-parties.

We have considered the submission so placed by the learned counsel for the petitioner and perused the application for amendment and the impugned order vis-à-vis the plaint.

On going through the application, we find that, the plaintiff just prayed for declaration that the *heba* deed dated 19.02.2012 bearing no. 2450 is not binding upon the plaintiff which is declaratory in nature so there has been no scope to find that the plaintiff prayed for cancellation of that very deed. And since by that *heba* deed 6 decimals of land has been transferred and the plaintiff prayed for recovery of khas possession fixing the value of the property at taka 5,000/- so for that purpose another court fee of taka 300/- has also been deposited that is, 600/- in total. So, we don't find any illegality on the part of the plaintiff to pay taka 600/- as court fee upon two distinct prayers but the learned Judge misconstrued that very legal point and illegally passed the impugned order which is liable to be set aside.

Given the above discussion and observation, we don't find any substance in the impugned order which is liable to be set aside.

Accordingly, the rule is made absolute however without any order as to costs.

The impugned judgment and order dated 24.03.2014 passed by the learned Joint District Judge, 1st Court, Noakhali in Title Suit No. 44 of 2011 is thus set aside.

The order of stay granted at the time of issuance of the rule stands vacated.

The learned Joint District Judge, 1st Court, Noakhali is hereby directed to dispose of the Title Suit No. 44 of 2011 as expeditiously as possible preferably within a period of 3(three) months from the date of receipt of the copy of the judgment.

Let a copy of the judgment be communicated to the court concerned forthwith.

Md. Bashir Ullah, J:

I agree.

Abdul Kuddus/B.O